



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 2, 2024

Re: CCRB Case Nos. 202006059 & 202102770 (Incident Dates: September 5, 2020 and July 21, 2021 on DADS No. 2022-25152; March 12, 2021 on DADS No. 2022-26864) involving Sergeant Robert Vassallo, Tax No. 954397

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Sergeant Robert Vassallo and has determined that his actions do not warrant the proposed discipline.

In regards to DADS No. 2022-25152, the Police Commissioner intends to dismiss all Charges and Specifications and issue a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days for Specification Nos. 1 and 2, and impose no disciplinary action for Specification Nos. 3 and 4.

With respect to refusing to provide his shield number, the Police Commissioner has determined CCRB has failed to prove by a preponderance of the evidence that he failed to provide his shield number. When interviewed, Sergeant Vasallo explained that although he ran out of business cards, he could not recall if he provided his name and shield number verbally or had written the information down. Without any further evidence, the Police Commissioner will impose no disciplinary action for this allegation.

With respect to providing an inaccurate statement, the CCRB interview took place approximately ten (10) months after the incident. Sergeant Vasallo was asked if the complainant requested business cards or shield numbers, prior to him being shown his body worn camera footage, to which he responded in the negative. CCRB then proceeded to show Sergeant Vassallo his body worn camera footage. After reviewing his footage, Sergeant Vasallo acknowledged that the complainant did ask for his business cards and that he responded, but he did not recall the specific conversation without viewing the body worn camera footage. The Police Commissioner

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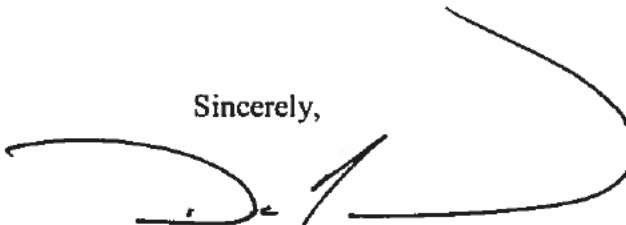
determined that based on the passage of time, it was reasonable that Sergeant Vasallo could not recall the specifics of this interaction, and therefore, he did not provide an inaccurate statement. The Police Commissioner will issue no disciplinary action in regard to the inaccurate statement allegation.

The Police Commissioner agrees with CCRB's substantiated findings for Specifications Nos. 1 and 2. However, the Police Commissioner will issue a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days, utilizing mitigated penalties. The Police Commissioner took into account Sergeant Vassallo's exceptional history with the Department, which includes twenty-three (23) medals over the course of his career.

With respect to Sergeant Vasallo's alleged interference with an unknown individual's use of a recording device, in DADS No. 2022-26864, the Police Commissioner will impose no disciplinary action. The Police Commissioner has determined that Sergeant Vasallo did not interfere with a recording device in any manner, he was simply performing his duties during a car stop at night. The Police Commissioner believes it is clear, Sergeant Vasallo was using his flashlight to shine anywhere he was looking, and in this case, for a brief moment, it was in the direction of an individual he was interacting with. The individual recorded the encounter several feet away from Sergeant Vasallo without issue. However, it was not until the individual closely approached Sergeant Vasallo that caused Sergeant Vasallo to briefly direct his flashlight in their direction and then immediately stopped when the individual stepped back to a safe distance. The Police Commissioner believes the evidence is abundantly clear that Sergeant Vasallo had no intention to interfere with anyone recording this police interaction.

Therefore, with respect to DADS No. 2022-25152, the Police Commissioner intends to dismiss all Charges and Specifications and issue a Schedule "B" Command Discipline with the forfeiture of two (2) vacation days for Specification Nos. 1 and 2, and impose no disciplinary action for Specification Nos. 3 and 4. With respect to DADS No. 2022-26864, the Police Commissioner intends to dismiss the sole charge and impose no disciplinary action.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

May 6, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case Nos. 202006059 & 022102770 (Incident Dates: September 5, 2020 and July 21, 2021 on DADS No. 2022-25152; March 21, 2021 on DADS No. 2022-26864) involving Sergeant Robert Vassallo, Tax No. 954397

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated May 22, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

On December 7, 2023, in front of Assistant Deputy Commissioner Jeff Adler, Sergeant Vassallo accepted the findings of substantiation of the allegations contained in the Charges and Specifications on both matters in return for a dismissal of the charges, and agreed to receive a Command Discipline Schedule (B) and the forfeiture of ten (10) vacation days on each matter, with those sentences to run concurrently to one another.

With regards to DADS No. 2022-25152, Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s (CCRB) recommended penalty, you intend to impose no disciplinary penalty on the inaccurate statement and failure to provide a shield number charges, and impose a Command Discipline (B) and the forfeiture of two (2) vacation days on the remaining charges. Deputy Chief Marino stated that you concluded that that there was insufficient evidence that Sergeant Vassallo failed to provide his shield number or that he made an inaccurate statement to the CCRB.

We disagree with the Police Commissioner’s determination. Sergeant Vassallo’s BWC clearly captures § 87(2)(b) make the request for Sergeant Vassallo’s number and business card. The BWC also captures that Sergeant Vassallo does not respond to this request by

providing either his shield number or business card. Furthermore, in his interview with CCRB, Sergeant Vassallo initially testified that § 87(2)(b) did not request business cards or shield numbers. After viewing his BWC during his interview, Sgt. Vassallo altered his prior statements numerous times, each time he was confronted with evidence contradicting them, and ultimately acknowledged that he heard and responded to § 87(2)(b) request for business cards and shield numbers. Sergeant Vassallo's constantly-changing statements regarding whether he heard § 87(2)(b) requests and whether he responded to them were clearly inaccurate.

With regards to DADS No. 2022-26864, Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board's (CCRB) recommended penalty, you intend on dismissing the charges and specifications in this matter and imposing no disciplinary penalty, as you have determined that Sergeant Vassallo was not intending to interfere with the civilian's attempt to record the incident.

We disagree with the Police Commissioner's determination. The cellphone video evidence shows Sergeant Vassallo shining his flashlight towards two individuals who were recording the incident. Sergeant Vassallo stated that shone his flashlight at both individuals because it was dark outside, and he was shining his light on wherever his eyes were focused. The first time Sergeant Vassallo shone his flashlight towards an individual it appeared to be unintentional because he was not initially looking at the individual and was holding his flashlight by his side. However, the second time Sergeant Vassallo shone his light towards an individual, he turned around and aimed his flashlight directly into the individual's phone. The cellphone video also shows that at the time Sergeant Vassallo used his flashlight the area was not particularly dark as there were streetlights and lights from other vehicles.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sergeant Vassallo and impose upon Sergeant Vassallo a Command Discipline Schedule (B) and the forfeiture of ten (10) vacation days for each matter, with the sentences to run concurrently.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
General Counsel
NYC Civilian Complaint Review Board